

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Hilary Hudson	Team: Team # 4	CCRB Case #: 200702834	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Thursday, 12/28/2006 4:30 PM	Location of Incident: § 87(2)(b) and the 75th Precinct Stationhouse afterwards	Precinct: 75	18 Mo. SOL 6/28/2008	EO SOL 6/28/2008	
Date/Time CV Reported Mon, 02/26/2007 9:51 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/28/2007 11:58 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Caputo	27878	935156	075 PCT
2. POM Javier Munoz	10519	935373	075 PCT
3. An officer			
4. POM Jay Rivera	03882	935599	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christie Miller	23813	933997	075 PCT
2. SGT Joseph Albert	00350	905669	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Javier Munoz	Off. Language: PO Javier Munoz made remarks to § 87(2)(b) based upon religion outside of § 87(2)(b) in Brooklyn.	
B.POM Jason Caputo	Off. Language: PO Jason Caputo made remarks to § 87(2)(b) based upon religion outside of § 87(2)(b) in Brooklyn.	
C.POM Jason Caputo	Discourtesy: PO Jason Caputo acted rudely toward § 87(2)(b) outside of § 87(2)(b) in Brooklyn.	
D.POM Javier Munoz	Discourtesy: PO Javier Munoz spoke obscenely to § 87(2)(b) at the 75th Precinct stationhouse.	
E.POM Jason Caputo	Discourtesy: PO Jason Caputo spoke obscenely to § 87(2)(b) at the 75th Precinct Stationhouse.	
F.POM Jay Rivera	Abuse: PO Jay Rivera did not obtain medical treatment for § 87(2)(b) at the 75th Precinct stationhouse.	
G. An officer	Discourtesy: An officer gestured obscenely toward § 87(2)(b) outside of the 75th Precinct stationhouse.	

Synopsis

At approximately 4:30 PM on December 28, 2006, PO Jay Rivera and PO Christie Miller responded to a dispute involving § 87(2)(b) and his tenant, § 87(2)(b) at § 87(2)(b) in Brooklyn. § 87(2)(b) was placed under arrest once it was determined that he had § 87(2)(b). § 87(2)(b) was placed in the back seat of PO Rivera and PO Miller's patrol car and shortly afterwards, PO Javier Munoz and PO Jason Caputo responded to the location. § 87(2)(b) stated that PO Caputo and PO Munoz said to him, "Oh, you're that slumlord, that Jewish fucking dirty slumlord that got arrested last time" and that PO Caputo called him a "fucking slumlord" [Allegations A and B]. PO Caputo then spit on § 87(2)(b) through the open rear window of PO Rivera and PO Miller's patrol car [Allegation C]. When § 87(2)(b) was at the 75th Precinct stationhouse, PO Caputo and PO Munoz called him an "animal" [Allegations D and E]. He also stated that he fainted when he was in the holding cell and PO Rivera refused to provide him with medical treatment [Allegation F]. Later on that evening, when § 87(2)(b) was outside of the stationhouse before being taken to Brooklyn Central Booking, unidentified officer stuck his middle finger up at § 87(2)(b) [Allegation G]. § 87(2)(b) was charged with violating an order of protection, intent to damage property, and 2nd degree harassment.

This case was assigned to Investigator Brian LaRochelle and was reassigned to Investigator Hilary Hudson on May 2, 2007 upon Inv. LaRochelle's resignation.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) filed his complaint with the Internal Affairs Bureau on February 22, 2007 (Enclosure 5A-C). IAB referred the complaint to the CCRB on February 28, 2007. § 87(2)(b) provided a telephone statement on March 21, 2007 (Enclosure 7), was interviewed at the CCRB on March 22, 2007 (Enclosure 8A-E), provided another telephone statement on May 30, 2007 (Enclosure 27D), and viewed a photographic array on October 10, 2007 (Enclosure 9A-J). § 87(2)(g). He is a § 87(2)(g) white male, five feet, eight inches tall, one hundred and eighty-five pounds, and has brown hair and blue eyes. § 87(2)(b)

On December 28, 2006, between 4:30 and 5:00 PM, § 87(2)(b) the landlord of § 87(2)(b) in Brooklyn, was inside of the building with his father, § 87(2)(b) and a contractor in order to perform repairs in § 87(2)(b). § 87(2)(b) has been involved in an ongoing dispute with § 87(2)(b) the tenant in § 87(2)(b). § 87(2)(b) saw that § 87(2)(b) "had her jukebox outside, plugged into my electricity outlet, which I don't think she's allowed to do." § 87(2)(b) told § 87(2)(b) to leave or else she would call the police and report that he was harassing her. Two police officers from the 75th Precinct responded to the location. § 87(2)(b) identified the officers as PO Jay Rivera and PO "Elvis," who was identified through investigation as PO Christie Miller. § 87(2)(b) spoke with the officers outside in the front of the building. PO Rivera and PO Miller refused to take § 87(2)(b)'s complaint that § 87(2)(b) was playing her jukebox too loud, which upset § 87(2)(b) because the officers did not listen to his side of the story. The officers then placed § 87(2)(b) under arrest for violating a limited order of protection § 87(2)(b) had against him and PO Rivera put him in the back of the patrol car.

By that time, two officers § 87(2)(b) identified by name as PO Jason Caputo and PO Javier Munoz had responded to § 87(2)(b). PO Caputo and PO Munoz said to § 87(2)(b) who was in the back right passenger seat of the patrol car, "Oh, you're that slumlord, that Jewish fucking dirty slumlord that got arrested last time, always looking for trouble." PO Caputo said to § 87(2)(b) "You're that fucking slumlord," and "You're so rich, your money is not going to help you." However, § 87(2)(b) did not mention any of the above statements when he filed his complaint with IAB or when he provided a

telephone statement on March 21, 2007. PO Caputo then stopped talking, paused, and spit on § 87(2)(b)'s shirt pocket. The back right passenger window was halfway down and PO Caputo was standing next to the window. According to § 87(2)(b) PO Rivera, PO Miller, and PO Munoz were outside speaking to a tenant in front of the building when PO Caputo spit on him. § 87(2)(b) was standing approximately two to three feet away from PO Caputo at a diagonal, approximately seven feet from the patrol car. § 87(2)(b) was sitting in (see diagram prepared by § 87(2)(b) Enclosure 8C). § 87(2)(b) attempted to inform the other three officers that PO Caputo spit on § 87(2)(b) but the officers ignored § 87(2)(b). PO Rivera and PO Miller then transported § 87(2)(b) to the 75th Precinct stationhouse.

While at the precinct, both PO Caputo and PO Munoz told § 87(2)(b) "You have no respect for tenants. You're treating them like animals, you're an animal." Additionally, § 87(2)(b) "fainted" in the holding cell and was "semi-conscious," and a prisoner in the holding cell helped § 87(2)(b) up. He described the prisoner as a black male, approximately 16-years-old, 5'6 to 5'7, skinny, and § 87(2)(b) believed he was arrested for § 87(2)(b). § 87(2)(b) requested medical treatment but PO Rivera refused to take him to the hospital. However, § 87(2)(b) did not mention any of the above statements when he filed his complaint with IAB or when he provided a telephone statement on March 21, 2007, but stated during his May 30, 2007 telephone statement that after he fainted the officer who was watching the cells got PO Rivera, who entered the holding cell and asked § 87(2)(b) if he wanted to go to the hospital. § 87(2)(b) nodded but PO Rivera told him that § 87(2)(b) had instructed PO Rivera not to let § 87(2)(b) go to the hospital. According to § 87(2)(b) PO Rivera repeatedly asked him if he wanted a DAT (desk appearance ticket) but when § 87(2)(b) asked PO Rivera what a DAT was, PO Rivera left the room.

At approximately 9:00 PM that evening, § 87(2)(b) was outside of the 75th Precinct stationhouse, being transported to Brooklyn Central Booking, when PO Caputo and an unidentified tall officer said, "There's that landlord" and the unidentified officer stuck his middle finger up at § 87(2)(b). He described that officer as a white male with dirty gray hair, clean shaven, muscular, and about 6'2" tall.

When asked what he wanted to accomplish by filing his complaint, § 87(2)(b) repeatedly referenced his difficulties with his tenants. He stated that, "I want them [the police officers] to stop picking on me," and that he wants "to have the chance to prove my innocence before they arrest me."

Results of Investigation

§ 87(2)(b) (witness)

§ 87(2)(b) was interviewed at the CCRB on June 4, 2007 (Enclosure 10A-D). He stated that on December 28, 2006, at approximately 4:20 PM, he arrived at § 87(2)(b) in Brooklyn. A tenant in the building named § 87(2)(b) has a limited order of protection against his son, § 87(2)(b). According to § 87(2)(b) § 87(2)(b) signed a piece of paper stating that § 87(2)(b) could perform work at the location on December 28, 2006. However, before § 87(2)(b) arrived at the building, § 87(2)(b) called 911 and a marked police car responded. When § 87(2)(b) arrived, he saw PO Jay Rivera, and PO Christie Miller talking to § 87(2)(b). § 87(2)(b) went up to PO Rivera and explained the order of protection. PO Rivera asked § 87(2)(b) for a copy of the order, and § 87(2)(b) stated that § 87(2)(b) should have a copy. § 87(2)(b) was then arrested by PO Rivera and PO Miller and placed in the right rear passenger seat of their marked patrol car.

§ 87(2)(b) was sitting inside the vehicle for approximately ten to fifteen minutes when a second police car pulled up to the scene and double parked behind the first police car. PO Jason Caputo exited from the passenger side of the vehicle and asked, "Is that the guy who drives the HHR?" referring to § 87(2)(b)'s vehicle. § 87(2)(b) stated that he has seen PO Caputo many times patrolling in the vicinity. PO Javier Munoz, the driver of that second car, never exited the vehicle. Either PO Rivera or PO Miller answered him saying, "Oh wow that's good... we finally got him." However, § 87(2)(b) also stated that PO Caputo said, "We finally got this guy again." PO Caputo then had a "demeaning type of

conversation with the other officers” in which he used expletives and derogatory language when speaking about § 87(2)(b). PO Caputo used the “f” word” and called § 87(2)(b) a “dirty Jew.”

PO Caputo walked over to the patrol car where § 87(2)(b) was sitting, said, “I see where you’re sitting there again, you see that? You fuck.” PO Caputo spit on the ground in the direction of § 87(2)(b). The windows of the patrol car were rolled up and the temperature outside was cold and typical for the season. § 87(2)(b) was standing on the sidewalk on the right hand side of the first police car, at a diagonal approximately 2 to 5 feet away from PO Caputo (see diagram drawn by § 87(2)(b) Enclosure 10C). PO Rivera and § 87(2)(b) were standing behind § 87(2)(b). PO Caputo also told § 87(2)(b) “You dirty [term § 87(2)(b) could not remember], so they got you I see.” § 87(2)(b) was then taken to the 75th Precinct.

Attempts to Interview Additional Witnesses

Several attempts were made to reach § 87(2)(b)’s tenant, § 87(2)(b). Calls were placed to § 87(2)(b) telephone number as listed in the UF-61 complaint report on July 31, August 1, and August 6, 2007. The number was either unable to accept incoming calls and once the voice messaging service identified the telephone number as belonging to a female named § 87(2)(b). A search on the DMV database listed § 87(2)(b) as living at § 87(2)(b), not § 87(2)(b). A search for § 87(2)(b) on WhitePages provided no results. A check in the Cole directory showed no listing for her at § 87(2)(b) but listed her at § 87(2)(b). There was no corresponding telephone number. Letters were mailed to § 87(2)(b) at § 87(2)(b) on July 31 and August 7, 2007 and letters were mailed to her at § 87(2)(b) on August 1 and August 7, 2007. None of the letters were returned by the U.S. Post Office and § 87(2)(b) never contacted the CCRB.

According to an entry made in the 75th Precinct command log at 5:55 PM on December 28, 2006, a § 87(2)(b) black male named § 87(2)(b) was arrested for § 87(2)(b). There is no listing in the holding pen roster for § 87(2)(b). However, he fit the description § 87(2)(b) provided of the young male who helped him up after he fainted. While checks on the DMV database and WhitePages provided no conclusive results, the Cole directory listed a telephone number for a man named § 87(2)(b) at the address for § 87(2)(b) from the command log. The letter mailed to § 87(2)(b) on July 31, 2007 was returned by the U.S. Post Office on August 7, 2007. On August 1, 2007, an attempt was made to reach § 87(2)(b) via telephone but the man who answered said no one by that name was there.

Officer Identification

According to the SPRINT, Sectors E and A responded, as well as a patrol supervisor (Enclosure 21A-B). Roll call from the 75th Precinct indicated that PO Jay Rivera, PO Christie Miller, PO Javier Munoz, PO Jason Caputo, and Sgt. Joseph Albert worked tour 3 on December 28, 2006 (Enclosure 24A-N). PO Rivera and PO Miller were assigned to Sectors EF, PO Munoz and PO Caputo were assigned to Sector A, and Sgt. Albert was one of the patrol supervisors. § 87(2)(b) identified PO Rivera, his arresting officer, by name. Although he said PO Rivera’s partner was PO “Elvis,” PO Rivera’s partner was PO Miller, as per the roll call, memo book entries made by PO Rivera and PO Miller, and the statements of all officers interviewed at the CCRB in connection with this case. § 87(2)(b) identified both PO Munoz and PO Caputo by name because they arrested him in May 2006 and interacted with him at the 75th Precinct stationhouse on § 87(2)(b), as per CCRB case § 87(2)(b). PO Rivera stated that Sgt. Albert arrived on scene to verify the arrest, which was confirmed by Sgt. Albert.

§ 87(2)(b) viewed a photo array on October 10, 2007, in order to identify the white male officer who flipped him off. The array contained photographs of two officers from the 75th Precinct who were on duty at the time of the incident and who matched the physical description provided by § 87(2)(b) as well as six filler officers from various commands. After viewing the group of photographs, § 87(2)(b) did not recognize any of the officers.

Officer Statements:

PO Jay Rivera and PO Christie Miller

PO Rivera's memo book: 1548: (52) § 87(2)(b) . 1620: Sgt. Albert signed. 1645: one under in regards to § 87(2)(b) (Enclosure 11A-C).

PO Miller's memo book: 1548 (52) § 87(2)(b) 1620 Sgt. Albert signed. 1 under § 87(2)(b) . 1645 PO Rivera (Enclosure 13A-D).

PO Rivera and PO Miller were interviewed at the CCRB on August 27, 2007 and August 17, 2007, respectively (Enclosures 12A-B and 14A-B). On December 28, 2006, they worked the hours of 1500x2335 and were assigned to patrol Sector 75 E/F. They were in uniform and assigned to RMP #1539. At approximately 3:48 PM, they received a radio run for a dispute with a violation of an order of protection at § 87(2)(b). Upon arrival at the scene, the female complainant § 87(2)(b) told PO Rivera that she had an order of protection against her landlord, § 87(2)(b). PO Rivera stated that he reviewed § 87(2)(b)'s order of protection and asked her what happened. § 87(2)(b) said that she and her landlord, § 87(2)(b) had a verbal dispute, after which he picked up her small, portable radio and threw it into the street.

According to PO Rivera, § 87(2)(b) was at a restaurant next door and came outside once he saw the officers speaking to § 87(2)(b). § 87(2)(b) told PO Rivera that § 87(2)(b) was crazy and denied all of § 87(2)(b)'s claims. § 87(2)(b)'s father, § 87(2)(b) was also on scene trying to ascertain facts and said § 87(2)(b) was "crazy." PO Rivera described § 87(2)(b) as calm but became upset when PO Rivera told him he was going to be arrested. § 87(2)(b) and § 87(2)(b) told the officers that they had no right to arrest him, that they were embarrassing him in front of the community, and that they were going to have their badges taken away. PO Miller responded that § 87(2)(b) would be at the 75th Precinct stationhouse, and PO Rivera placed § 87(2)(b) in handcuffs and in the back of the patrol car. However, PO Miller stated that he, not PO Rivera, placed § 87(2)(b) in the car.

At approximately 4:20 PM, Sgt. Joseph Albert arrived on scene to verify the arrest and stayed at the location for about ten minutes. PO Miller stated that, to his knowledge, no other police officers, including PO Caputo and PO Munoz, responded to the scene. However, according to PO Rivera, even though he did not initially recall any other officers arriving on scene, he stated, after being told that the SPRINT showed the Sector A car responded, that PO Jason Caputo and PO Javier Munoz arrived at § 87(2)(b) after § 87(2)(b) was placed in PO Rivera's patrol car. The windows of the patrol car were rolled up and according to PO Miller, it is not typical to lower the back windows when there are prisoners in a police car. PO Rivera denied hearing PO Caputo and PO Munoz talk § 87(2)(b) or § 87(2)(b). Both PO Rivera and PO Miller denied hearing PO Caputo call § 87(2)(b) a "fucking slumlord" and denied hearing PO Caputo and PO Munoz call § 87(2)(b) a "dirty Jewish fucking slumlord." PO Rivera and PO Miller denied seeing PO Caputo spit onto § 87(2)(b)'s shirt. PO Caputo and PO Munoz stayed at the location no more than ten minutes.

PO Rivera and PO Miller transported § 87(2)(b) to the 75th Precinct stationhouse in their vehicle. PO Rivera stated that § 87(2)(b) was placed in a holding cell with one other individual. PO Rivera said that § 87(2)(b) did not faint while in the holding cell and therefore did not refuse to provide medical treatment. PO Miller did not go back to the cell area and therefore did not know if § 87(2)(b) fainted in the holding cell or refused medical treatment. Neither officer saw PO Caputo or PO Munoz at the stationhouse and they both denied hearing PO Caputo or PO Munoz call § 87(2)(b) an "animal." PO Rivera and PO Miller were off duty by the time § 87(2)(b) was transported to Brooklyn Central Booking and thus denied seeing an officer extend a middle finger towards § 87(2)(b).

PO Javier Munoz and PO Jason Caputo

PO Munoz's memo book: 1605 85 75E § 87(2)(b) ... 2051 1 under by partner. 2110 S/H security (Enclosure 15A-B).

PO Caputo's memo book: 1605 85 75E § 87(2)(b) 2051 1 under... 2054 Time in PCT. 2113 Time in Caps. 2140 Paperwork faxed (Enclosure 17A-C).

PO Javier Munoz and PO Jason Caputo were interviewed at the CCRB on August 31, 2007 and June 4, 2007, respectively (Enclosures 16A-B and 18A-B). On December 28, 2006, they worked the hours of 1500x2335 and were assigned to patrol Sector 75A. They were in uniform and assigned to RMP #1481.

At approximately 4:05 PM, PO Munoz and PO Caputo responded to a non emergency call for additional units needed in sector 75 E. When PO Caputo and PO Munoz arrived at the location, § 87(2)(b) PO Rivera and PO Miller were already on scene and § 87(2)(b) was in the backseat of their patrol car.

PO Munoz stated that he did not know § 87(2)(b) was involved until they arrived at the location. PO Munoz recognized § 87(2)(b) and stated that he arrested § 87(2)(b) before and § 87(2)(b) has filed complaints against him. PO Munoz "didn't want to deal with it" so he remained in his car. PO Caputo exited the car and spoke to PO Miller and PO Rivera, who had speaking to the female complainant § 87(2)(b). PO Caputo did not see § 87(2)(b)'s father outside during the incident. PO Munoz did not hear any conversation between PO Rivera, PO Miller, PO Caputo, and § 87(2)(b). PO Munoz could not recall if Sgt. Joseph Albert was already at the location or if he arrived later. PO Caputo stated that a crowd had gathered at that point so he and PO Munoz remained to ensure that nothing got out of hand. However, PO Munoz did not believe a crowd gathered. Both PO Munoz and PO Caputo stated that the windows of PO Miller and PO Rivera's vehicle were rolled up. PO Munoz and PO Caputo denied calling § 87(2)(b) a "dirty fucking Jewish slumlord." PO Caputo denied spitting on § 87(2)(b) and PO Munoz did not witness such an act. PO Caputo denied interacting with § 87(2)(b) while at the location.

Upon leaving the scene, PO Caputo and PO Munoz resumed patrol and did not return to the stationhouse until 8:54 PM, after making an arrest. They did not see § 87(2)(b) at the stationhouse any time that evening. Both PO Munoz and PO Caputo denied calling § 87(2)(b) an "animal." They were unaware if he was denied medical treatment and denied seeing an officer extend his middle finger towards § 87(2)(b). PO Caputo denied interacting that day with a tall white male officer with dirty gray hair.

Sgt. Joseph Albert

Memo book: 1620 visited 75E. PO Miller and PO Rivera § 87(2)(b) (Enclosure 19).

Sergeant Joseph Albert was interviewed at the CCRB on August 31, 2007 (Enclosure 20A-B). On December 28, 2006, he worked the hours of 1450x2347 and was the patrol supervisor. He was in uniform and assigned to a marked RMP. At approximately 4:20 PM on December 28, 2006, Sgt. Albert received a call from central dispatch to verify an arrest made by PO Jay Rivera and PO Christie Miller. When Sgt. Albert arrived at § 87(2)(b) the defendant, § 87(2)(b) was already handcuffed and in PO Rivera and PO Miller's patrol car. Sgt. Albert told PO Rivera and PO Miller to bring § 87(2)(b) to the stationhouse, after they explained the situation to Sgt. Albert. He did not see PO Jason Caputo or PO Javier Munoz at § 87(2)(b) and denied hearing either of them call § 87(2)(b) a "dirty fucking Jewish slumlord." He also denied hearing PO Caputo call § 87(2)(b) a "dirty fucking slumlord" and denied seeing PO Caputo spit on § 87(2)(b). Sgt. Albert said there were people on the street but they were not crowding around the area. Sgt. Albert did not see § 87(2)(b) at the stationhouse later that day and thus did not see any other officers talk to or extend their middle finger towards § 87(2)(b). He did not remember seeing PO Miller and PO Rivera at the stationhouse afterwards.

Police Documents:

SPRINT (Enclosure 21A-B)

The SPRINT showed that § 87(2)(b) called on December 28, 2006 at 3:29 PM to report a dispute and stated that she had an order of protection against a white male. Sector E responded at 3:49 PM and requested a sergeant to the location at 4:03 PM. Sector A arrived at the scene at 4:21 PM and Sector E made one arrest at 4:45 PM.

UF-61 (Enclosure 22A-B)

§ 87(2)(a) 160.50

Arrest Report (Enclosure 23A-B)

§ 87(2)(a) 160.50

Command Log (Enclosure 25A-B)

The entry for § 87(2)(b) shows that he was signed in at 4:50 PM and was transported to Brooklyn Central Booking at 10:15 PM.

Status of Criminal Charges

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant's Criminal Conviction History

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant's CCRB History (Enclosure 4)

§ 87(2)(b) has filed two other complaints with the CCRB. § 87(2)(b)

Officer's CCRB Histories (Enclosures 1-3)

PO Jay Rivera, PO Javier Munoz, and PO Jason Caputo, all three year members of the NYPD, have not been the subjects of any substantiated CCRB allegations.

Conclusions and Recommendations

Undisputed Facts

PO Rivera and PO Miller responded to a dispute at § 87(2)(b) and arrested § 87(2)(b) for § 87(2)(a) 160.50. The arrest was verified by Sgt. Albert. PO Munoz and PO Caputo responded to the scene after § 87(2)(b) was handcuffed and placed in PO River and PO Miller's patrol car. § 87(2)(b) was transported to the 75th Precinct stationhouse before being removed to Brooklyn Central Booking.

Facts in Dispute

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation A: PO Javier Munoz made remarks to § 87(2)(b) based upon religion outside of § 87(2)(b) in Brooklyn.

Allegation B: PO Jason Caputo made remarks to § 87(2)(b) based upon religion outside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that when PO Munoz and PO Caputo responded to § 87(2)(b) they called him a “Jewish fucking dirty slumlord” and that PO Caputo called him a “fucking slumlord.” However, § 87(2)(b) alleged in CCRB case § 87(2)(b) that PO Munoz called him a “dirty fucking Jewish landlord/slumlord” and made a similar allegation against another officer in CCRB case § 87(2)(b) claiming that he was called a “dirty Jewish landlord.” § 87(2)(g)

[REDACTED]

Allegation C: PO Jason Caputo acted rudely toward § 87(2)(b) outside of § 87(2)(b) in Brooklyn.

§ 87(2)(b) also alleged that while he was sitting inside of the patrol car in front of § 87(2)(b) PO Caputo sit on his shirt through the open window. § 87(2)(b) stated that PO Caputo spit on the

ground near the patrol car, not on § 87(2)(b) PO Caputo denied spitting on him and the other officers' statements confirmed this. Further, according to § 87(2)(b) PO Caputo, PO Rivera, PO Miller, and PO Munoz, the windows of the patrol car were rolled up while § 87(2)(b) was in the back seat. § 87(2)(g)

Allegation D: PO Javier Munoz spoke obscenely to § 87(2)(b) at the 75th Precinct stationhouse.
Allegation E: PO Jason Caputo spoke obscenely to § 87(2)(b) at the 75th Precinct Stationhouse.

§ 87(2)(b) alleged that while he was at the 75th Precinct stationhouse, PO Munoz and PO Caputo told him, "You have no respect for tenants. You're treating them like animals, you're an animal." PO Munoz and PO Caputo denied making that statement to him and denied even seeing him at the stationhouse that evening. It is possible that § 87(2)(b) saw them there because he was not transported to Brooklyn Central Booking until 10:15 PM, and the officers returned to the stationhouse around 9:00 PM to process an arrest. However, § 87(2)(b) made nearly the same allegation in regards to his first CCRB case (§ 87(2)(b) when he claimed that when he was at the 75th Precinct stationhouse on § 87(2)(b), PO Munoz and PO Caputo said to him, "What kind of animal are you? You're treating [a tenant] like an animal." § 87(2)(g)

Allegation F: PO Jay Rivera did not obtain medical treatment for § 87(2)(b) at the 75th Precinct stationhouse.

§ 87(2)(b) alleged that after he fainted in the holding cell at the 75th Precinct he asked PO Rivera for medical treatment but PO Rivera refused to provide it. He also stated that PO Rivera asked him if he wanted to go to the hospital but said that § 87(2)(b) instructed PO Rivera not to let him go to the hospital, § 87(2)(g) However, when he initially filed the complaint with IAB and then provided a telephone statement on March 21, 2007, he did not mention this allegation at all. PO Rivera stated that § 87(2)(b) never fainted in the holding cell that evening and therefore did not refuse to provide him medical treatment. None of the other officers interviewed confirmed § 87(2)(b)'s testimony and without a statement from witness § 87(2)(b) it is unclear whether or not § 87(2)(b) actually fainted and requested medical treatment. § 87(2)(g)

Allegation G: An officer gestured obscenely toward § 87(2)(b) outside of the 75th Precinct stationhouse.

§ 87(2)(b) alleged that when he outside of the 75th Precinct before being taken to Brooklyn Central Booking, an officer extended his middle finger towards him. Based on the description of the officer that § 87(2)(b) provided, a 6'2 white male with dirty gray hair, the only two possible subject officers were included in the photographic array shown to him on October 10, 2007. However, § 87(2)(b) did not identify any of the officers from the array § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: